

COMMERCIAL LEASE AGREEMENT Landlord: Vanguard Properties **Tenant:** Apex Dynamics **1. Base Rent:** Base rent is calculated strictly on a per-square-foot (SQFT) basis per month. The exact rate and current footprint are governed by the most recent Property Plat Map Addendum. **2. Common Area Maintenance (CAM):** Tenant shall pay their Pro-Rata Share (defined as Tenant SQFT divided by Total Building SQFT) of all allowable CAM expenses.

- *Exclusions:* The following expense categories are strictly excluded from CAM and cannot be passed to the tenant: "Capital Improvements", "Legal Fees", "Roof Replacement", and "Marketing". **3. Statutory Interest on Default:** Any shortfall in Base Rent or CAM payments at year-end shall accrue interest. The rate must be the exact "Short-term" Applicable Federal Rate (AFR) using "Annual" compounding, published by the IRS for January of the year following the default (January 2024). This is applied as a simple flat penalty on the total principal shortfall.